

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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HUMBERTO MUNOZ,

Plaintiff,

-against-

Index No.:

Date Original Summons and  
complaint were filed with the  
clerk:

Plaintiff designates  
KINGS COUNTY as the place  
of trial  
The basis of venue is location  
where the cause of action arose

NEW YORK CITY, NEW YORK CITY POLICE  
DEPARTMENT, FRANCESCO IORIO SHIELD NO. 5463  
NEW YORK CITY POLICE OFFICERS JOHN AND JANE  
DOE #1-10 (intended as police officers whose names and  
identifying information are unknown)

Defendants.  
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**SUMMONS**

**Plaintiff resides at:**

**103-19 93<sup>rd</sup> Street**

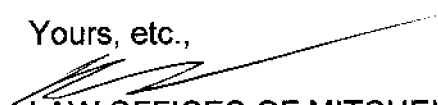
**Ozone Park, NY 11417**

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York  
February 12, 2020

Yours, etc.,

  
LAW OFFICES OF MITCHELL C. ELMAN,  
P.C.  
377 Oak Street Suite 415

**Defendant's addresses:**

**THE CITY OF NEW YORK**  
100 Church Street  
New York, NY 10007

**THE NEW YORK CITY POLICE DEPARTMENT**  
PO FRANCESCO IORIO SHIELD NO 5463  
And New York City Police Officers John and Jane Doe #1-10  
One Police Plaza  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

-----X  
HUMBERTO MUNOZ,

Plaintiff,

Index No.:

-against-

**VERIFIED**  
**COMPLAINT**

NEW YORK CITY, NEW YORK CITY POLICE  
DEPARTMENT, FRANCESCO IORIO SHIELD NO. 5463,  
NEW YORK CITY POLICE OFFICERS JOHN AND JANE  
DOE #1-10 (intended as police officers whose names and  
identifying information are unknown)

Defendants.  
  
-----X

Plaintiff, complaining of Defendants, by his attorneys, Law Offices of Mitchell C.  
Elman, P.C. respectfully shows to this Court, and alleges upon information and belief, the  
following:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff HUMBERTO MUNOZ (hereinafter referred to as "MUNOZ") is a resident of Queens County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Francesco Iorio, (hereinafter "IORIO") Shield Number 5463 was and is employed by the New York City Police Department.

3. That at all times hereinafter mentioned, New York City Police Officers John and Jane Doe ("DOE") #1-10 collectively, the officers involved in the arrest of MUNOZ were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, IORIO was and is a police officer acting within the scope of employment and under the color of duty of the City of New York and the New York City Police Department.
5. That at all times hereinafter mentioned, DOE were police officers acting within their scope of employment and under the color of duty of the City of New York and the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York, City and State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, was and is an agency created and maintained by the above municipal government.
8. On or about December 20, 2019 the notice required by Municipal Law 50-E was given to the City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. On or about February 26, 2019 a hearing required Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim against the City of New York and its agents and employees. To

date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

10. That on or about September 24, 2018 at approximately 8:00 P.M. in the vicinity Nicholls Street, Brooklyn, New York, Plaintiff was lawfully walking on the sidewalk.

11. That on or about September 24, 2018, at approximately 8:00 P.M. in the vicinity of Nicholls Street, Brooklyn, New York, Defendant IORIO and DOE approached Plaintiff wherein they handcuffed and arrested the Plaintiff.

12. At no time was Plaintiff engaged in any criminal or unlawful activity.

13. That at no time was Plaintiff in possession of any controlled substances.

14. That at no time was Plaintiff in possession of marijuana.

15. That at no time did Plaintiff reside on or near Nicholls Avenue, Brooklyn, New York.

16. Thereafter Plaintiff was arrested and transported to the 75<sup>th</sup> Precinct.

17. That while Plaintiff was in the 75<sup>th</sup> Precinct, he was searched and nothing of an illegal nature was recovered.

18. That after being held in a cell inside of the 75<sup>th</sup> Precinct for several hours Plaintiff was transported to Central Booking.

19. That on or about September 25, 2018, Plaintiff was arraigned under Docket Number CR-043134-18KN charging him with PL 221.25, PL 221.20, VTL 1202 (A)(1)(A), PL 221.15, PL221.10(1), PL 221.10 (2), PL 221.05, VTL 509 (1).

20. That at the time of Plaintiff's arraignment, bail was set.

21. That Plaintiff was remanded to the custody of the New York City Department of Corrections.

22. That after a few days, plaintiff posted bail and was released from custody.

23. Thereafter, charges under docket number CR-043134-18KN were dismissed in their entirety, with the disposition date of November 23, 2018.

**AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

24. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

26. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from the day of his arrest and onward.

27. That as a result of Defendants actions, Plaintiff has been unable to sleep.

28. That as a result of Defendants actions, Plaintiff has been unable to maintain employment.

29. That as a result of the Defendants actions, Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

30. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 – 28 as if more fully stated herein at length.

31. The intentional verbal abuse, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendant are individually liable.

32. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorneys fees.

**AS AND FOR A THIRD CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

33. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-31 as if more fully stated herein at length.

34. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec 1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorneys fees.

**AS AND FOR A FOURTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-34 as if more fully stated herein at length.

36. That at all times pertinent hereto, IORIO was acting with the scope of his employment as an officer of the New York City Police Department and the City of New York.
37. That at all times pertinent hereto, DOE was acting within the scope of their employment as officers of the New York City Police Department and the City of New York.
38. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff suffer physical and severe emotional distress for which the Defendants are individually liable.
39. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.
40. That Defendants did persist in their claims in an effort to continue the prosecution of the Plaintiff.
41. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.
42. That Defendants City of New York and the New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that IORIO and DOE committed within the scope of their employment.



**AS AND FOR A FIFTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

43. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-42 as if more fully states herein at length.

44. The City of New York and the New York City Police Department's failure to provide adequate training and supervision to IORIO and DOE constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A SIXTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF HUMBERTO MUNOZ**

45. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-44 as if more fully states herein at length.

46. Upon information and belief, the City of New York and the New York City Police Department maintained a system of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention and prosecution of Plaintiff.

47. Upon information and belief, the City of New York and the New York City Police Department maintained a system of review police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

48. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would

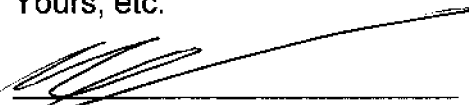
49. otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**WHEREFORE**, Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, HUMBERTO MUNOZ demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which

would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together with costs, disbursements and punitive damages in an amount to be determined at the time of trial in the within action including any statutory attorneys fees and disbursements pursuant to 42 U.S.C §1983 and for such other and further relief as to this Court may deem just and proper.

Dated: Garden City, New York  
February 12, 2020

Yours, etc.

  
LAW OFFICES OF MITCHELL C.  
ELMAN, P.C.  
377 Oak Street Suite 415  
Garden City, NY 11530  
(516)586-6666

**VERIFICATION**

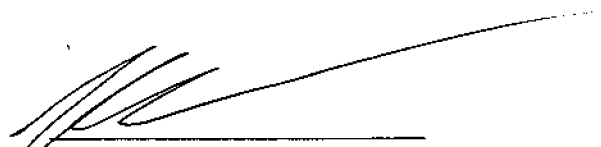
STATE OF NEW YORK       )  
                                          )ss.:  
COUNTY OF NASSAU       )

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within COMPLAINT and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated:     Garden City, New York  
           February 12, 2020

  
**Mitchell C. Elman**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS:

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HUMBERTO MUNOZ

Index No.:

Plaintiff,

-against-

**VERIFIED COMPLAINT**

NEW YORK CITY, NEW YORK CITY POLICE  
DEPARTMENT, FRANCESCO IORIO  
SHIELD NO. 5463, NEW YORK CITY POLICE  
OFFICERS JOHN AND JANE DOE # 1-10  
(intended as police officers whose names and  
identifying information are unknown)

Defendant.

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**LAW OFFICES OF MITCHELL C. ELMAN P.C.**

**377 Oak Street, Suite 415**

**Garden City, NY 11530**

**Telephone (516) 586-6666**

**Facsimile (516) 345-2517**